

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

COMPLAINT No: CC006000000023509

Mr. Dinanath Sawant

..... Complainant

Versus

M/s. Nirmal Lifestyle (Kalyan) Private Limited

MahaRERA Registration No. P51700003538

..... Respondent

Coram: Hon'ble Dr. Vijay Satbir Singh, Member 1

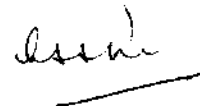
Adv. Tanmay Ketkar appeared for the complainant.

Mr. Rohit Chavan appeared for the respondent.

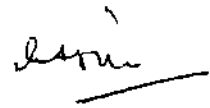
ORDER

(7th May, 2018)

1. The complainant has filed this complaint seeking directions from this Authority to the respondent to refund the amount paid by him to the respondent with interest in respect of booking of a flat bearing No. 903 in the building known as "Platano-F", bearing MahaRERA registration No. P51700003538 at Kalyan, Dist Thane.
2. During the hearing, it was brought to the notice of this Authority that both the parties have arrived at an amicable settlement on the following mutually agreed terms.



- a) The respondent has agreed to refund the entire amount of Rs. 14,30,057/- towards the said "settlement amount" in equal installments up to 20-09-2018 through five post dated cheques drawn on Union Bank of India , Mulund (West) Branch.
- b) The complainant agreed that upon receipt of last installment, he shall execute a Deed of Cancellation in respect of the said flat.
- c) Both the parties have agreed that the aforesaid complaint is to be disposed of as settled and withdrawn in accordance with these consent terms.
3. Accordingly, they have filed detailed and notarized consent terms on record of this Authority. The same is taken on record.
4. Considering the above settlement, the complaint stands disposed of as withdrawn.



(Dr. Vijay Satbir Singh)
Member-1/MahaRERA